

APPENDIX A: CRIMINAL RULES

Cr17.1 ISSUANCE OF DEFENSE SUBPOENAS IN A CRIMINAL CASE (*See Fed. R. Crim. P. 17*)

- (a) Requests under Fed. R. Crim. P. 17(b) are not required to include proposed or draft subpoenas as attachments but must include a description of the requested information. If the request is granted, the Clerk's Office shall issue blank subpoena(s), signed, and sealed to the defendant.

Cr32.1 SENTENCING PROCEDURE AND PRESENTENCE REPORTS (*See Fed. R. Crim. P. 32; 18 U.S.C. § 3552*)

(a) Presentence Interview

The attorney for the defendant will receive notice and a reasonable opportunity to attend any presentence investigation interview by the probation officer with the defendant. Defense counsel has the burden of responding as promptly as possible to enable timely completion of the presentence report. If an undue delay is caused by defense counsel's unavailability, the probation officer will consult with the Court about proceeding with the interview without counsel.

(b) Presentence Investigation Report

- (1) Presentence investigation reports are confidential documents and shall be filed electronically under seal. Any objections or responses to objections concerning the reports shall be filed in accordance with Federal Rule of Criminal Procedure 32. All responses to the objections must be electronically filed and served on the opposing party and the Probation Office within **7 days** of receipt of objections unless directed otherwise by the Court.
- (2) The probation officer's recommendation on sentencing shall not be disclosed to anyone other than the Court and shall be filed separately from the presentence investigation report as a sealed "Court only" filing following disposition.

(c) Subpoena of Records and Testimony

- (1) When probation records, presentence reports, or testimony by a probation officer are requested by subpoena or other judicial process, the probation officer shall file a petition seeking instruction from the sentencing court for such disclosure. No disclosure will be authorized except upon an order issued by the sentencing court.

Cr41.1 PUBLIC ACCESS TO SEARCH WARRANTS

- (a) The following procedures govern search warrant proceedings:
 - (1) All search warrant cases will be considered unsealed when six months has passed since the date of sealing. The Clerk's Office will take no action, and the cases will not automatically be made accessible (via PACER or otherwise), unless a request is made to the Clerk of Court for access to the documents.
 - (2) If a request is made, the Clerk's Office will issue a notice directing the United States Attorney to show cause- within 14 days - why the case or a certain portion thereof should remain inaccessible. A judicial officer of this Court then will determine whether the United States Attorney has demonstrated good cause for the materials in question to remain inaccessible for an additional period, no longer than six months.
 - (3) Unless the United States Attorney files a motion demonstrating good cause for keeping the materials confidential, at the end of the additional period of inaccessibility, the Clerk's Office will automatically render the materials accessible *without further notice or Court Order*.

Cr44.1 ATTORNEY'S OBLIGATIONS REGARDING APPEALS

- (a) Criminal Cases
 - (1) Following judgment of conviction in a criminal case, a privately retained or appointed attorney representing a convicted defendant shall file one of the following documents within the time permitted for an appeal:
 - i. a notice of appeal;

- ii. a notice signed by the defendant stating that the attorney has explained to the defendant his/her/their right to appeal, and the defendant declines to file a notice of appeal; or
- iii. a notice signed by the attorney indicating that the attorney has explained to the defendant his/her/their right to appeal, the defendant has not requested that the attorney file a notice of appeal, and the defendant has declined to sign a notice under subsection (a)(1)(ii).

Cr50.1 **DISPOSITION OF CRIMINAL CASES; SPEEDY TRIAL**
(See Fed. R. Crim. P. 50; 18 U.S.C. § 3161, *et seq.*; 18 U.S.C. §§ 5036, 5037)

- (a) The disposition of criminal cases shall be handled and disposed of in accordance with the District's *Plan for Achieving Prompt Disposition of Criminal Cases* ("Speedy Trial Plan").
 - (1) The Speedy Trial Plan places special requirements on both the government and the defendant regarding time which may be excluded from the time allowed by the Speedy Trial Plan, including an obligation for both parties to review the Clerk of Court's records of excusable time for completeness and accuracy.
 - (2) The Clerk of Court shall enter judicial determinations of excusable time on the docket and in such other records as the Court may direct.